

22STCV15026 22STCV15026

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 19

Tentative

Ruling

22STCV15026

ROCIO

AYALA, et al. vs VALENCIA FULFILLMENT INC., et al.

June

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION FOR LEAVE TO FORMALLY ADD OR LEAVE TO FORMALLY ADD
AFFIRMATIVE DEFENSE TO ANSWER.

RULING:

The Court grants the Motion.

Defendant may serve and
file the proposed Answer as a separate document on or before June 29, 2026.

I.

BACKGROUND

ROCIO AYALA and GARY RAND
& SUZANNE E. RAND-LEWIS (Plaintiffs) bring suit against VALENCIA
FULFILLMENT, INC., JOSE CORONA, and MARISOL CORONA (Defendants), alleging the
following causes of action:

1. BREACH OF EXPRESS CONTRACT;
2. CONSTRUCTIVE TRUST/UNJUST ENRICHMENT;
3. VIOLATION OF BUSINESS AND PROFESSIONS CODE
§17200; and
4. INTERFERENCE WITH PROSPECTIVE ECONOMIC
ADVANTAGE & BUSINESS RELATIONS.

Allegedly, Defendants
refuse to pay the \$42,500.00 owed pursuant to a Settlement Agreement having an
attorneys' fees provision.

On May 6, 2026, Defendants
filed the Motion to Amend the Answer, to add collateral estoppel as an
affirmative defense.

Plaintiffs have opposed,
based on several arguments further addressed below.

II.

LEGAL STANDARD

"[D]iscretion should be
exercised liberally in favor of amendments, for judicial policy favors

resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

Reconsideration

is inapposite, where different issues are raised. (E.g., Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1291 [reconsideration inapposite where motion for discovery sanctions based on conduct occurring after rulings]; Farber v. Bay View Terrace Homeowners Assn. (2006) 141 Cal.App.4th 1007, 1013 [motion for judgment on the pleadings did not involve reconsideration where court declined to consider unclearly raised issue in overruling a prior demurrer]; Community Memorial Hospital v. County of Ventura (1996) 50 Cal.App.4th 199, 204-205 [“But a motion for summary judgment or adjudication is not a reconsideration of a motion overruling a demurrer. They are two different motions.”].)

“[T]o comply with the safe harbor provisions of section 128.7, a party may not bring a motion for sanctions unless there is some action that the offending party may take to withdraw the improper pleading.” (Martorana v. Marlin & Saltzman (2009) 175 Cal.App.4th 685, 699.)

III.

ANALYSIS

Defendants request to add
this paragraph as an affirmative defense:

“That
on July 22, 2022, this Court, Hon. Teresa Traber, Judge, presiding, granted plaintiffs’ motion to enforce the settlement agreement between plaintiff Rocio Ayala and defendants, and ordered defendants to pay the amount set forth in the settlement agreement, as well as attorneys fees and costs incurred in the making of the motion. Judge Traber denied plaintiffs’ request, as set forth in the motion to enforce the settlement agreement, to award additional fees to plaintiffs. Plaintiffs did not appeal that Order, and that Order is final. The parties to that motion to enforce the settlement agreement are the same parties as are litigants in this case, or are in privity with them.”

(Motion, 1:26-2:4.)

Plaintiffs respond with

points including these:

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Defendants' motion is untimely as the law and motion cut off date expired on July 7, 2025. Defendants did not seek leave of court to file this motion almost ten (10) months after the motion cut off date.

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Defendants' motion violates California Rules of Court, Rule 3.1324, and is not accompanied by the mandatory attorney Declaration attesting to when the need for amendment was discovered.

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Defendants' argument that re judicata precludes all of Plaintiffs' claims has already been rejected by this Court on multiple occasions. Defendants cannot show that claim preclusion and/or issue preclusion apply to this case.

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Defendants waived and forfeited any right to assert claim preclusion and/or issue preclusion by their failure to plead it in their original Answer filed after their default was vacated.

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Defendants' delay in filing this motion is unreasonable and is severely prejudicial to Plaintiffs. The Court has already held approximately ten (10) Final Status Conferences, and Plaintiffs have been ready for Trial since July, 2025.

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Defendants' motion is an improper motion for reconsideration in violation of Code of Civil Procedure §1008.

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Defendants' proposed Answer is procedurally defective, not properly verified, and improperly seeks affirmative relief beyond the proposed amendment. Defendants did not seek leave to assert any cross-claim or affirmative claim for relief.

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Sanctions are warranted against Defendants and their counsel for bringing this frivolous,

bad faith motion.

(Opposition, pp. 16-17.)

A court can deny leave to amend after long, inexcusable delay, where there is cognizable prejudice, such as discovery needed, trial delay, critical evidence lost, or added preparation expense. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A newly raised argument or court ruling may be justification for delay in moving for leave to amend. (Cf. *Foundation for Taxpayer and Consumer Rights v. Nextel Communications, Inc.* (2006) 143 Cal.App.4th 131, 136 [“The argument fails because the FTCR had no reason to amend its complaint until Nextel sought to apply Proposition 64 to this case.”]. Cf. also *Richter v. Adams* (1941) 43 Cal.App.2d 184, 187 [determining abuse of discretion in denial of leave to amend complaint, partly because recent substitution of attorney was one good reason for delay].)

Courts generally do not consider the validity of proposed amendments to a pleading. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; *Atkinson v. Elk Corp.* (2006) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow ... [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings.”].)

“Collateral estoppel as a defense need not be alleged in an answer or other responsive pleading,...” (E.g., *Rodgers v. Sargent Controls & Aerospace* (2006) 136 Cal.App.4th 82, 89.)

Here, Defendants state that the Motion is filed, “in an abundance of caution,...” (Motion, 4:9.) And Plaintiffs recognize that, “[o]n November 21, 2025, Defendants substituted new counsel to represent them in this case.” (Opposition, 20:28). However, Plaintiffs argue on the merits that, “Defendants cannot show that claim preclusion and/or issue preclusion apply to this case.” (Opposition, 16:15-16).

All relevant things

considered, the Court finds and concludes that the Motion otherwise would have been unnecessary where issue preclusion need not be included in any answer; however, the amendment is now justified because Plaintiffs have filed the Opposition contesting that applicable rule of law. Further, Plaintiffs have failed to show cognizable prejudice by an amended answer, because the issue of collateral estoppel is not triggered by filing the Answer, but could have been injected into the case at any time during its pendency, as analyzed above.

Additionally, the Court rejects Plaintiffs' procedural objections, as Courts may overlook harmless procedural errors made in the documents or proceedings that do not affect substantial rights of parties. (See, e.g., Code Civ. Proc., § 475; *Morgan v. AT & T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1252; *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1289 ["Procedural defects which do not affect the substantial rights of the parties do not constitute reversible error...."]; *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 283 [court is bound to ignore any "defect ... in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties."].)

IV.

CONCLUSION

The Court grants the Motion, for reasons stated.

Finally, the opposing request for sanctions is denied, in the Court's sound discretion, as not complying with "safe harbor" requirements, and not addressing any frivolous issues or unnecessary delay.